

## Essential Element Of Acceptance

### 1. Absolute & Unqualified

Acceptance must **mirror the offer exactly**. Any modification — even minor — converts it into a counter-offer. This is the **mirror image rule**.

### 2. Must Be Communicated

The offeror must **actually receive** the acceptance. Mental assent kept in the mind of the offeree has no legal effect whatsoever.

### 3. By the Offeree Only

Only the **person to whom the offer was made** (or their authorised agent) has the legal capacity to accept. A third party's acceptance is void.

### 4. Within Reasonable Time

Acceptance must be given **before the offer lapses**. Unreasonable delay destroys the offer, and a belated acceptance creates no contract.

### 5 Prescribed Manner

If the offeror specifies a particular **mode of acceptance** — such as by registered post or email — the offeree must follow that mode. Acceptance given in any other manner may not bind the offeror.

If no mode is prescribed, acceptance must be communicated in a **reasonable and usual manner** for that type of transaction.

### 6 Silence Is Not Acceptance

Silence, inaction, or failure to respond does **not** amount to acceptance in Indian law